

FIXON Partner Agreement

Partner agreement template defining commercial cooperation, responsibilities, reporting, stock support, confidentiality, brand use and termination.

Working legal/commercial draft. This translated version is prepared for reading, download and local counsel review before use in the selected country.

1. Parties and Status

This agreement is concluded between FIXON and the Partner identified in the Partner Card. The Partner remains an independent business and is not authorised to act as agent, employee or legal representative of FIXON unless expressly agreed in writing.

The agreement does not create a franchise, business opportunity, employment relationship or exclusive distribution right unless the local version expressly states otherwise.

2. Commercial Cooperation

The Partner may promote, demonstrate and sell FIXON products through the agreed channel. The scope of products, stock, prices, discount rules and display materials is defined in the appendices.

No guaranteed income, margin or sales volume is promised. Any forecast is indicative and must be reviewed under local law before use.

3. Reporting and Settlement

The Partner provides monthly reports covering sales, stock, returns, urgent events and customer feedback. Settlement takes place after the relevant sales period has been confirmed.

The parties adapt tax, invoice, withholding, resale and consumer disclosure wording to the selected jurisdiction.

4. Brand, Data and Termination

The Partner uses the FIXON brand only according to the Brand Policy and approved materials. Personal data and marketing communication must follow the applicable privacy and electronic communication laws.

Termination, notice periods, dispute resolution and post-termination duties must be localised before signature.

Country localisation matrix

Market | Adaptation

UK | Use UK governing law and jurisdiction where applicable; review UK GDPR, PECR, product liability and B2B sale terms.

USA | Use state-specific law and venue; review business opportunity/franchise triggers, earnings claims, warranty, sales tax and privacy rules.

Canada | Use province-specific law; review CASL, privacy, bilingual requirements where applicable, warranty, tax and product safety.

Australia | Review Australian Consumer Law, unfair contract terms, privacy, product safety, warranty, import and tax clauses.

South Africa | Review POPIA, electronic communications, Consumer Protection Act exposure, product liability, import, tax and dispute wording.

Germany | Use German-law drafting; review BGB/HGB, GDPR/BDSG, UWG marketing rules, warranty, retention of title and standard-term controls.

Austria | Use Austrian-law drafting; review ABGB/UGB, GDPR/DSG, UWG marketing rules, warranty, retention of title and standard-term controls.

Switzerland | Use Swiss-law drafting; review the Code of Obligations, revised FADP, competition rules, warranty and cross-border data transfers.

Local clauses before signature

Area | To review before use

Governing law | Country, venue, language and dispute resolution

Privacy | Roles, notices, consent and data transfers

Product & sales | Warranty, liability, safety, tax and import

Marketing | Electronic communication, claims, testimonials and pricing displays

Document table

Clause area | Localisation before signature

Governing law | Insert country/state/province/canton-specific law and venue

Data processing | Define controller/processor roles and marketing consent

Product liability | Localise warranty, warnings, returns and liability limits

Business opportunity risk | Review especially for the USA and other regulated markets

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